

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

Index No.:

-----X  
EDWIN LIRIANO

Date Original  
Summons and  
complaint were filed  
with the  
clerk: September 24,  
2020

Plaintiff,

-against-

**SUMMONS**

THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT, POLICE OFFICER ANDRE OHARA SHIELD  
NO. 9433, SERGEANT ROBERT MARTINEZ SHIELD NO.  
1369, SERGEANT WILLIAM SCHUMACHER SHIELD NO.  
04618, NEW YORK CITY POLICE OFFICERS JOHN AND  
JANE DOE #1-10 (intended as police officers whose names and  
identifying information are unknown)

Plaintiff designates  
Kings County as the  
place of trial

The basis of venue is  
location where the  
cause of action arose

Defendants.  
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To the above-named Defendant:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: NEW YORK, NY  
September 24, 2020

Yours, etc.,  
*Bart Pittari*

\_\_\_\_\_  
Bart Andrew Pittari, Esq.  
**GREENSTEIN & MILBAUER LLP**  
*Attorney for Plaintiff*  
1825 Park Avenue  
9<sup>th</sup> Floor  
New York, NY 10035  
(212)685-8500  
File No.: 183

**TO: THE CITY OF NEW YORK**  
**100 Church Street**  
**New York, NY 10007**

**THE NEW YORK CITY POLICE DEPARTMENT**  
**One Police Plaza**  
**New York, NY 10038**

**NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10**  
**One Police Plaza**  
**New York, NY 10038**

**POLICE OFFICER ANDRE OHARA SHIELD NO. 9433**  
**SERGEANT ROBERT MARTINEZ SHIELD NO. 1369**  
**SERGEANT WILLIAM SCHUMACHER SHIELD NO. 04618**  
**One Police Plaza**  
**New York, NY 10038**

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
EDWIN LIRIANO

Plaintiff,

**VERIFIED  
COMPLAINT**

-against-

Index No.:

THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT, POLICE OFFICER ANDRE OHARA SHIELD  
NO. 9433, SERGEANT ROBERT MARTINEZ SHIELD NO.  
1369, SERGEANT WILLIAM SCHUMACHER SHIELD NO.  
04618, NEW YORK CITY POLICE OFFICERS JOHN AND  
JANE DOE #1-10 (intended as police officers whose names and  
identifying information are unknown)

Defendants.

-----X  
Plaintiff, **EDWIN LIRIANO** complaining of Defendants, by Plaintiff's attorneys,

Greenstein & Milbauer LLP respectfully shows to this Court, and alleges upon information and  
belief, the following:

1. That at all times hereinafter mentioned, Plaintiff Edwin Liriano, is a resident of KINGS  
County, State of New York.
2. That at all times hereinafter mentioned, New York City Police Officers John and Jane  
Doe ("DOE") #1-10 collectively, the officers involved in the arrest of Edwin Liriano,  
were employed by the New York City Police Department.
3. That at all times hereinafter mentioned, POLICE OFFICER ANDRE OHARA  
SHIELD NO. 9433 was employed by the New York City Police Department.

4. That at all times hereinafter mentioned, SERGEANT ROBERT MARTINEZ SHIELD NO. 1369, was employed by the New York City Police Department.
5. That at all times hereinafter mentioned, SERGEANT WILLIAM SCHUMACHER SHIELD NO. 04618, was employed by the New York City Police Department.
6. That at all times hereinafter mentioned, POLICE OFFICER ANDRE OHARA SHIELD NO. 9433, SERGEANT ROBERT MARTINEZ SHIELD NO. 1369, and SERGEANT WILLIAM SCHUMACHER SHIELD NO. 04618 were police officers. acting within their scope of employment and under the color of duty of The City of New York and the New York City Police Department.
7. That at all times hereinafter mentioned, DOE were police officers. acting within their scope of employment and under the color of duty of The City of New York and the New York City Police Department.
8. That at all times hereinafter mentioned, Defendant The City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 100 Church Street, County of New York, City and State of New York.
9. That at all times hereinafter mentioned, Defendant New York City Police Department, was and is an agency created and maintained by the above municipal government.
10. On or about December 20, 2018 the notice required by Municipal Law 50-E was given to The City of New York, by service via certified mailing. Said notice set forth the facts underlying Plaintiff's claim against The City of New York, and its agents and employees.

11. To date, no answer has been received by Plaintiff and no compensation has been offered by The City of New York.
12. On or about February 26, 2020 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth facts underlying Plaintiff's claim against The City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by The City of New York in response to this claim, and more than thirty (30) days have elapsed.
13. That on or about November 28, 2018, in the vicinity of 125 Pine Street, Brooklyn, New York 11208 Plaintiff was lawfully a visitor to those premises.
14. That on or about November 28, 2018, in the vicinity of 125 Pine Street, Brooklyn, New York 11208, Defendants approached Plaintiff wherein they handcuffed and arrested the Plaintiff.
15. That at no time was Plaintiff engaged in any criminal or unlawful activity.
16. That at no time was Plaintiff in possession of any controlled substances.
17. Thereafter Plaintiff was arrested and transported to the 75th Precinct.
18. Plaintiff was arrested under arrest #K18667218.
19. That while Plaintiff was at this Precinct, the Plaintiff was searched and nothing of an illegal nature was recovered.
20. That after being held in a cell inside of this Precinct for approximately one day Plaintiff was transported to Central Booking.
21. That after being held at Central Booking for approximately one day, Plaintiff was released from custody.

22. That Plaintiff was forced to attend Court in relation to the charges for which he was arrested for on several separate occasions.
23. That on or about June 27, 2019, the KINGS County Criminal Court dismissed all charges for which Plaintiff was arrested for on November 28, 2018.
24. That on or about June 27, 2019, a KINGS COUNTY Grand Jury dismissed all charges for which Plaintiff was arrested for on November 28, 2018.
25. 23. That on or about June 27, 2019, a KINGS COUNTY Grand Jury dismissed all charges for which Plaintiff was arrested for on November 28, 2018 under Docket # CR-051478-18KN.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF  
PLAINTIFF EDWIN LIRIANO**

26. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.
27. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.
28. That as a result of the actions by Defendants, Plaintiff was traumatized and fears for the Plaintiff's own physical safety when the Plaintiff sees and encounters members of the New York City Police Department from the day of the arrest and on ward.
29. That as a result of Defendants' actions, Plaintiff has been unable to sleep.
30. That as a result of Defendants actions, Plaintiff has been unable to maintain employment.

31. That as a result of the Defendants' actions, Plaintiff sustained damage to Plaintiff's person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF  
PLAINTIFF EDWIN LIRIANO**

32. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1-31 as if more fully stated herein at length.

33. The intentional verbal abuse, false arrest, and false imprisonment by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

34. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless unlawfully arrest Plaintiff with actual malice toward the Plaintiff and with willful and wanton indifference to and deliberate disregard for the Plaintiff's constitutional rights. Thus, Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF  
PLAINTIFF EDWIN LIRIANO**

35. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1-34 as if more fully stated herein at length.

36. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec 1983, et al as well as the corresponding sections of the New York State

Constitution, for which Defendants are individually liable. Thus, Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF  
PLAINTIFF EDWIN LIRIANO**

37. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1-36 as if more fully stated herein at length.
38. That at all times pertinent hereto, DOE was acting within the scope of their employment as officers of the New York City Police Department and the City of New York.
39. That at all times pertinent hereto, POLICE OFFICER ANDRE OHARA SHIELD NO. 9433, SERGEANT ROBERT MARTINEZ SHIELD NO. 1369, and SERGEANT WILLIAM SCHUMACHER SHIELD NO. 04618 were acting within the scope of their employment as officers of the New York City Police Department and the City of New York.
40. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff suffer physical and severe emotional distress for which the Defendants are individually liable.
41. The verbal abuse, false arrest, and false imprisonment of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and with deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.



42. That Defendants did persist in their claims in an effort to continue the imprisonment of the Plaintiff.
43. That the respective Defendants, their agents, servants and/or employees engaged in presenting and/or providing false information and/or testimony for the purpose of prosecuting this action.
44. That Defendants The City of New York and the New York City Police Department are each liable for compensatory damages under the doctrine of respondent superior for the internal torts that DOE committed within the scope of their employment.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF  
PLAINTIFF EDWIN LIRIANO**

45. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1-44 as if more fully states herein at length.
46. The City of New York and the New York City Police Department's failure to provide adequate training and supervision to DOE, POLICE OFFICER ANDRE OHARA SHIELD NO. 9433, SERGEANT ROBERT MARTINEZ SHIELD NO. 1369, and SERGEANT WILLIAM SCHUMACHER SHIELD NO. 04618 constitute a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF  
PLAINTIFF EDWIN LIRIANO**

47. Plaintiff repeats, reiterates, and realleges the allegations contained in paragraphs 1-46 as if more fully states herein at length.

48. The Defendant, The City of New York, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, the Defendant, The City of New York, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the Defendant, The City of New York, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.
49. The Defendant, New York City Police Department, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, the Defendant, New York City Police Department, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the Defendant, New York City Police Department, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.
50. That by reason of the foregoing, Plaintiff Edwin Liriano, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continued to suffer serious and extreme mental and emotional anguish, distress and psychological

damages and difficulties, some of which injuries are permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries, Plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and Plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

51. That by reason of the aforesaid unlawful arrest, the Plaintiff, was deprived of Plaintiff's liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in Plaintiff's character and reputation, was prevented from attending Plaintiff's usual business and avocation, was injured in Plaintiff's reputation in the community and the said plaintiff has been otherwise damaged.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF  
PLAINTIFF EDWIN LIRIANO**

52. Plaintiff repeats, reiterates, and realleges the allegations contained in paragraphs 1-51 as if more fully states herein at length.
53. Upon information and belief, the City of New York and the New York City Police Department maintained a system of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

54. Upon information and belief, The City of New York and the New York City Police Department maintained a system of review police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

55. That by reason of the foregoing, Plaintiff has suffered damages in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

**WHEREFORE**, Plaintiff, demands judgment against the respective Defendants in the First Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, demands judgment against the respective Defendants in the Second Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff demands judgment against the respective Defendants in the Third Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, demands judgment against the respective Defendants in the Fourth Cause of Action in an amount which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, demands judgment against the respective Defendants in the Fifth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein,

and said amount to be determined upon the trial of this action; Plaintiff, demands judgment against the respective Defendants in the Sixth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action, together costs, disbursements and punitive damages in an amount to be determined at the time of the trial in the within action including any statutory attorney's fees and disbursements pursuant to 42 U.S.C. § 1983 and for such other and further relief as to this Court may deem just and proper.

Dated: New York, NY  
September 24, 2020

Yours, etc.,

***Bart Pittari***

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Bart Andrew Pittari, Esq.  
**GREENSTEIN & MILBAUER LLP**  
*Attorney for Plaintiff*  
1825 Park Avenue  
9th Floor  
New York, NY 10035  
(212) 685-8500

**VERIFICATION**

I the undersigned, an attorney duly admitted to practice law in the State of New York, under penalties of perjury do affirm:

That I am the attorney of record for the Plaintiff in the within matter, and make this affirmation in accordance with C.P.L.R. §3020. I have read the within COMPLAINT and know the contents thereof to be true to your Affirmant's own knowledge, with the exception of those matters therein stated to be alleged upon which your Affirmant bases his belief regarding those matters based upon the contents of the file and conversations with the Plaintiff.

This verification is made by your Affirmant and not by Plaintiff for the following reason(s): that the Plaintiff resides in a different county than where your Affirmant maintains an office.

Dated: New York, NY  
September 24, 2020

Yours, etc.,

*Bart Pittari*

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Bart Andrew Pittari, Esq.  
Greenstein & Milbauer LLP  
1825 Park Avenue  
9th Floor  
New York, NY 10035



**VERIFICATION**

I the undersigned, an attorney duly admitted to practice law in the State of New York, under penalties of perjury do affirm:

That I am the attorney of record for the Plaintiff in the within matter, and make this affirmation in accordance with C.P.L.R. §3020. I have read the within **COMPLAINT** and know the contents thereof to be true to your Affirmant's own knowledge, with the exception of those matters therein stated to be alleged upon which your Affirmant bases his belief regarding those matters based upon the contents of the file and conversations with the Plaintiff.

This verification is made by your Affirmant and not by Plaintiff for the following reason(s): that the Plaintiff resides in a different county than where your Affirmant maintains an office.

Dated: New York, NY  
September 24, 2020

Yours, etc.,

***Bart Pittari***

\_\_\_\_\_  
Bart Andrew Pittari, Esq.